

drawing), 并发现[A]似乎与该句最为接近, 但对比后发现[A]实则偷换概念。随后将[B]定位到第六段④句, 但对比发现与文意相反。[D]符合第五、六段以 As so often is the case 形成“理论情形 VS 现实情况”的对比, 并可概括第六段②③句, 且顺应作者观点“最高法院应就数据隐私搜查提更新的指导原则”, 故正确。将[C]定位到第五段②句, 发现这是作者接受的事实, 并非其担忧对象, 也可排除。

VII ① But the justices should not swallow^① California's argument whole. ② New, disruptive^② technology sometimes demands novel^③ applications of the Constitution's protections. ③ Orin Kerr, a law professor, compares the explosion^④ and accessibility^⑤ of digital information in the 21st century with the establishment of automobile use as a virtual^⑥ necessity^⑦ of life in the 20th. The justices had to specify^⑧ novel rules for the new personal domain^⑨ of the passenger car then; they must sort out^⑩ how the Fourth Amendment applies to digital information now. [420 words]

但是法官们不应全盘接受加州的观点。新的破坏性技术有时需要宪法保护范围的新颖应用。法学教授奥林·克尔把“21 世纪数字信息爆炸及其可获取性”与“20 世纪汽车确立为生活必需”相较: 当时法官们不得不为小轿车这一新兴私人领域明确新规; 现在他们也必须解决第四修正案如何适用于数字信息的问题。

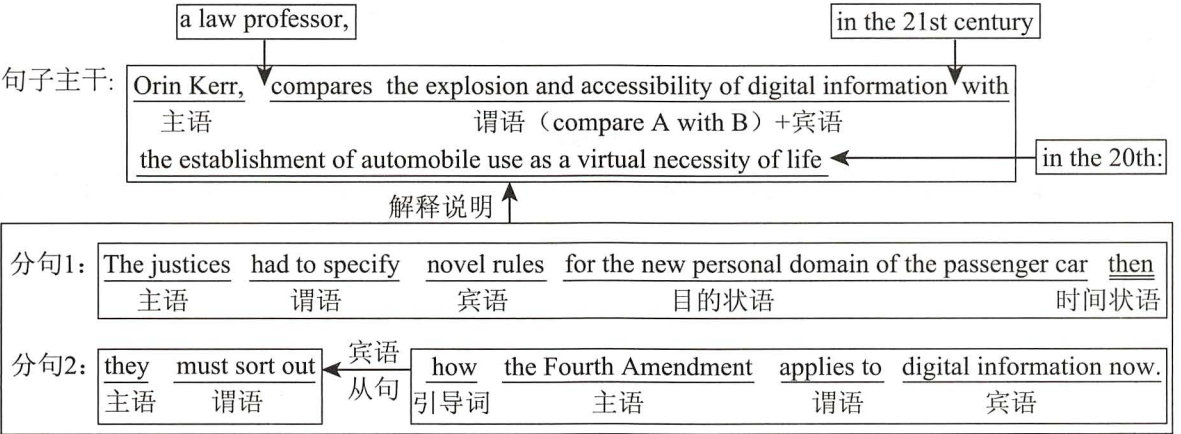
· 词汇注释与难句分析 ·

- ①swallow ['swɒləʊ] v. 忍受, 轻信
- ②disruptive [dis'rʌptɪv] a. 破坏的; 扰乱
- ③novel ['nɒvəl] a. 新奇的; 异常的
- ④explosion [ɪk'spləʊʒən] n. 爆炸; 爆发; 激增
- ⑤accessibility [ək'sesə'bɪləti] n. 易接近, 可达性
- ⑥virtual ['vɜ:tʃʊəl] a. 几乎的, 实际上的
- ⑦necessity [nɪ'sesɪti] n. (迫切) 需要; 必需品
- ⑧specify ['spesɪfaɪ] v. 具体指定; 详述

- ⑨domain [dəʊ'meɪn] n. 范围, 领域
- ⑩sort out 解决
- 经典搭配
- ①novel application(新的运用)
- ②digital information(数字信息)
- ③automobile use(汽车使用)
- ④passenger car(小客车)

Orin Kerr, a law professor, compares the explosion and accessibility of digital information in the 21st century with the establishment of automobile use as a virtual necessity of life in the 20th. The justices had to specify novel rules for the new personal domain of the passenger car then; they must sort out how the Fourth Amendment applies to digital information now.

结构切分:



功能注释: 本句主干为 Orin Kerr compares... with...; The justices had to...; they must sort out...。其中, a law professor 为 Orin Kerr 的同位语成分, 补充说明该人物的职位; how 引导的从句做